

		<u>Plaintiff's Request for Monetary Sanctions</u> Plaintiff requests that the Court impose monetary sanctions against PSIC in the amount of \$16,900. This request is denied, based on applicable law and facts. The Court may impose a monetary sanction against any party or attorney, or both, who has engaged in a misuse of the discovery process, unless it finds that the one subject to sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc. § 2023.030(a).) The burden of showing that a party acted with substantial justification or that other circumstances make the imposition of the sanction unjust is on the losing party. (<i>Golf & Tennis Pro Shop, Inc. v. Superior Court</i> (2022) 84 Cal.App.5th 127, 139.) Here, the Court finds that PSIC has met the burden of showing it acted with substantial justification with regards to PSIC's position as to RFP, Nos. 27, 28, and 30 as privacy rights are implicated. Plaintiff contends that he offered to stipulate to a protective order, no evidence supports this assertion with regards to RFP, Nos. 27, 28, and 30. (Motion, 18:26-19:3, 21:28-22:2.) However, it does not appear that Plaintiff offered to stipulate to a protective order with regards to RFP, Nos. 27, 28, and 30, although such offer was made as to other requests for production. (ROA 52, See Ex. 2 to Declaration of Regina Spurley.) Plaintiff to give notice.
8.	30-2025-01471567 Rojas vs. General Motors LLC	1. Case Management Conference 2. Motion for Attorney Fees Plaintiff, Martin Rojas, moves for an order awarding attorneys' fees in the amount of \$25,177.50 (37.3 hours at \$675/hr) and \$730.72 in costs and expenses. For the reasons set forth herein, and based on applicable law, the Court GRANTS attorney's fees in the amount of \$22,747.50 (33.7 hours at \$675/hr), and costs and expenses in the amount of \$730.72. Defendant, General Motors, LLC ("Defendant" or "GM") contends that the fee request is inflated, justifying the denial of the motion outright. In the alternative, GM contends that the Court should award no more than \$9,194.50 in fees and costs, reducing the fee award by 15.2 hours (\$10,260) as several time entries are unreasonable or reflect non-compensable services. GM additionally contends that Plaintiff's counsel did not satisfy his burden to show his declared rate of \$675 per hour is reasonable, and the rate should be reduced to \$600 per hour, and therefore find, at most, that \$8,520 in fees were reasonably incurred. Further, GM asserts that the cost entry for One Legal Fees in the amount of \$56.22 was not reasonably incurred such that it should be taxed and the Court should award no more than \$674.50 in costs. <i>Entitlement to Fees' and Costs</i> Civil Code section 1794(d) states: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794(d).) "A prevailing party under [Code of Civil Procedure] section 1032 is not necessarily a prevailing party under a separate attorney fee statute. [Citation.] As explained in <i>Wohlgemuth v. Caterpillar Inc.</i> (2012) 207 Cal.App.4th 1252, 144 Cal.Rptr.3d 545, regarding the [Song-Beverly Consumer Warranty] Act: "[W]here (as here) a fee-shifting statute is concerned, a number of Courts of Appeal

have taken the approach that attorney fees recovery is governed by the fee-shifting statute itself, rather than a rigid adherence to Code of Civil Procedure section 1032. Under this analysis, if the particular fee-shifting statute does not define prevailing party, then the trial court should simply take a pragmatic approach to determine which party has prevailed. That is, the trial court would determine which party succeeded on a practical level, by considering the extent to which each party realized its litigation objectives. [Citations.] Section 1794(d) is likewise a remedial fee-shifting statute, and thus the same practical approach to the issue of prevailing party is applicable to section 1794(d).’ [Citation.]” (*MacQuiddy v. Mercedes-Benz USA, LLC* (2015) 233 Cal.App.4th 1036, 1047.)

Here, Plaintiff’s counsel provides that the case came to a settlement on September 8, 2025, whereby Defendant agreed to repurchase the vehicle. (Kazerouni Decl., ¶¶ 15-16.) Plaintiff’s counsel also provides that Defendant agreed that Plaintiff is the prevailing party for purposes of the instant fee motion. (*Id.*, ¶ 16.) Based on the foregoing, Plaintiff is the prevailing party in this matter.

Lodestar

A court assessing a claim for attorney’s fees under Civil Code section 1794(d) uses the lodestar method to determine the reasonableness of such a claim. (*Mikhaeilpoor v. BMW of North America* (2020) 48 Cal.App.5th 240, 247-248 (“*Mikhaeilpoor*”).)

“ ‘The plain wording of the statute requires the trial court to base the fee award upon actual time expended on the case, as long as such fees are *reasonably* incurred—both from the standpoint of the time spent and the amount charged “It requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” . . . [The] prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount.’ [Citation.]” (*McKenzie v. Ford Motor Company* (2015) 238 Cal.App.4th 695, 698, 703; *Mikhaeilpoor, supra*, 48 Cal.App.5th at p. 247 [same].)

“In the situation of a *contingency fee* arrangement, the court in *Nightingale* stated, “for purposes of section 1794, subdivision (d), a prevailing buyer represented by counsel is entitled to an award of reasonable attorney fees for time reasonably expended by his or her attorney.” (*Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 105, at fn. 6, 37 Cal.Rptr.2d 149.) In either case, a prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816, 5 Cal.Rptr.2d 770.)” (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 817–818

A court has wide discretion in determining what constitutes reasonable attorney fees. The court typically makes this determination based upon declarations without live testimony. The value of legal services performed in a case is a matter in which the court has its own expertise, and thus may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096; *Padilla v. McClellan* (2001) 93 Cal.App.4th 1100, 1107; *Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691,

698 [“experienced trial judge is the best judge of the value of professional services rendered in his court”).]

To oppose a showing of a fee request supported by declarations describing the efforts taken with billing records to establish the hours of work, a party may “attack the itemized billings with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable.” (*Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Assoc.* (2008) 163 Cal.App.4th 550, 563-564.) “The party opposing the fee award can be expected to identify the particular charges it considers objectionable. A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections.” (*Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 101.)

A trial court is not required to issue any explanation of its decision with regard to a fee award. (*Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 264; *Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 65.)

Initially, Defendant argues that Plaintiff’s counsel has inflated the fees in anticipation that the Court will reduce them thereby justifying an outright denial of this motion. Defendant fails to establish that the requested fees are inflated warranting an outright denial of this motion.

Plaintiff’s Objections to the Declaration of Ryan Kay
The Court OVERRULES Objection No. 1.

Reasonableness of Hours Expended

Plaintiff’s counsel provides that they expended 29.40 hours in this case for five months of litigation where Plaintiff’s counsel conducted and participated in the following non-exhaustive list of activities: meetings with Plaintiff regarding the matter, research of similar complaints to similar Defendant model vehicles, and the preparation and filing of the lawsuit, review of Defendant’s Answer and affirmative Defenses; review of Defendant’s Meet and Confer and their proposed Stipulation And Protective Order-Confidential Designation; research regarding Defendant’s insistence on a protective order and the various conflicting court orders regarding the same; preparation and response to Defendant’s Meet and Confer; gathering and providing Plaintiff’s initial disclosures, repeated attempts to get Defendant’s to respond to Plaintiff’s attempt to meet and confer; negotiations and discussions surrounding Defendant’s request for Protective order; preparation and participation in Plaintiff’s deposition; negotiations of Vehicle Repurchase Settlement; coordination of Vehicle Tender and attendance at the Vehicle tender; and the preparation and drafting of this instant motion for fees. (Kazerouni Decl., ¶ 14, Ex. 1.)

GM asserts that the hours 29.40 hours incurred should be reduced by 15.2 hours and that the Court should find that only 14.2 hours were reasonably incurred as follows.

Pre-engagement Work—February 25, 2025 and March 31, 2025: Defendant seeks to deduct 1.7 hours (\$1,147.50) Mr. Kazerouni billed to the file before Plaintiff was even a client of Counsel’s firm. However, the work performed before Plaintiff was a client appears to have been incurred in connection with the commencement of the action. Defendant does not cite to any authority supporting that any work done before Plaintiff is a client is not reasonably incurred under Civil Code section 1794(d). No time is deducted.

Complaint—March 31, 2025: Defendant contends that Plaintiff’s counsel billed 3.1 hours (\$2,092.50) to “[d]raft[]” the Complaint, “prepare[] the documents for one legal filing,” and “file[],

and that the time should be reduced by 2.6 hours (\$1,755.00) as it could not have reasonably taken more than 30 minutes to revise a templated Complaint, and that this time includes tasks that could have been completed by an assistant or paralegal at a rate much lower than Mr. Kazerouni's rate of \$675 per hour.

Preparing binders for a hearing and printing pages cited in briefs, saving the files to a computer, and reviewing and tagging cites are examples of tasks that have been found to be purely clerical and thus noncompensable or compensable at a reduced billing rate. (*Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1187.) Defendant does not show that the tasks performed are necessarily clerical. No time is deducted.

Research—June 5, 2025: Defendant contends that 2.2 hours (\$1,485.00) billed on “[r]esearch[.]” should be disallowed as researching “new lemon law requirements” is an overhead cost that is not compensable. Defendant also contends that given the simplicity of this case, the 2.2 hours allegedly spent were not “reasonably incurred” under Civil Code §1794(d), as well as that the time is block-billed such that GM and the Court cannot assess the reasonableness of the time. GM cites to no authority establishing that Plaintiff's counsel's research is an overhead cost that is not compensable, or that the research on protective order issues and new lemon law requirements was not reasonably incurred. Further, the entry is not block billed in a manner that prevents the Court from assessing the reasonableness of the time billed. No time is deducted.

Prepare Initial Disclosures and Meet and Confer Letter—June 16 & 17, 2025: Defendant contends that Mr. Kazerouni “billed” 1.9 hours (\$1,282.50) to draft a meet and confer letter and the initial disclosures, and that these entries should be reduced by 1.4 hours (\$945) as Plaintiff's counsel's letter was a generic three-page letter, that it could not have taken longer than 30 minutes to draft this standard letter based on the statutory requirements, and that this time is block-billed such that the Court and GM cannot assess the reasonableness of the time. Defendant's opinion that the meet and confer letter was a standard letter that should not have taken longer than 30 minutes is entirely unsupported. Nor is either entry block billed in such a manner that the Court cannot assess the reasonableness of the time billed. Additionally, in reply, Plaintiff provides that he was forced to respond to Defendant's insistence of an unnecessary protective order, and responded with the meet and confer letter dated June 17, 2025, which is attached. (Supplemental Declaration of Mike Kazerouni (“Supp. Kazerouni Decl.”), ¶ 12, Ex. 7.) Defendant's assertion that this is a “generic” letter is unsupported by evidence and is merely argument, which is insufficient. No time is deducted.

Block-Billed Time Signing Protective Order—July 17, 2025: Defendant contends that Mr. Kazerouni “billed” 0.9 hours (\$607.50) to communicate with GM regarding the protective order and execute same, and that this time should be reduced by 0.5 hours (\$337.50) as this time is block-billed, making it impossible for GM and the Court to determine the reasonableness of the time, and as it could not have reasonably taken longer than 20 minutes to communicate with GM regarding the protective order and execute same. Again, Defendant's counsel's opinion as to how long a task should have taken is merely argument, and while the entry is block billed, the entire time spent on these tasks appears to have been reasonably incurred. In reply, Plaintiff's counsel also provides that counsel spent over 28 minutes on a call with Lisa Olsen to come to an agreement on how to move forward, and the remaining 0.4 hours for a voicemail, and two emails appears reasonably incurred. (Supp. Kazerouni Decl., ¶ 13.) No time is deducted.

Deposition Preparation with Plaintiff—July 29, 2025: Defendant contends that Mr. Kazerouni “billed” 1.5 hours (\$1,012.50) to “[d]epo prep with client,” which should be reduced by 1.0 hours (\$675) as it could not have reasonably taken longer than 30 minutes to discuss a simple lemon law deposition with Plaintiff. Defendant's counsel's opinion is unsupported and constitutes only

argument. 1.5 hours to prepare Plaintiff for deposition appears to have been reasonably incurred. No time is deducted.

Duplicate Time Entry—August 13, 2025: Defendant contends that Mr. Kazerouni twice billed 0.2 hours to respond to GM’s settlement offer, and requests that the duplicate entry be struck, for a 0.2 hour (\$135.00) reduction. However, Plaintiff’s counsel provides that they are not duplicative and that these entries relate to two separate communications that took place on August 13, 2025. (Supp. Kazerouni Decl., ¶ 16.) No time is deducted.

Communications—June 30, 2025, July 15, 2025, and July 17, 2025: Defendant contends that on three occasions, Mr. Kazerouni “billed” a total of 0.6 hours (\$405.00), in 0.2 increments, to “[s]en[d] follow up email,” and “[r]eceive[] email,” but that this time should be reduced by 0.5 hours (\$337.50) as it could not have taken longer than a couple minutes to send a follow-up email or receive a brief email. Defendant’s assertion is not supported by any evidence and constitutes only argument. Plaintiff’s counsel has provided a copy of the itemized billing records of contemporaneously recorded time. (Kazerouni Decl., ¶ 3, Ex. 1.) The entries for this time appear to have been reasonably incurred. No time is deducted.

Administrative Time—August 4, 2025: Defendant contends that Plaintiff’s counsel billed 0.4 hours (\$270.00) on administrative tasks such as “[p]repared, filed, and served CMC statement & [p]osting of [j]ury [f]ees,” and that this time should be reduced by 0.2 hours (\$135) as these tasks could have been completed by an assistant or paralegal at a rate less than Mr. Kazerouni’s rate of \$675 per hour. GM fails to cite to any authority establishing that such tasks constitute administrative tasks done by an attorney and that they should be deducted or allowed at a reduced hourly rate. Nor do these tasks appear to be solely administrative. No time is deducted.

Attending Vehicle Surrender After Settlement—October 9, 2025: Defendant contends that Mr. Kazerouni “billed” 1.1 hours (\$742.50) to “[a]ttend [v]ehicle [t]ender at [d]ealership,” and that this entry should be deducted as it was not necessary for Mr. Kazerouni to attend the vehicle surrender. Again, Defendant cites to no authority supporting that such task is not necessary. This task appears reasonably incurred to ensure a smooth vehicle surrender. No time is deducted.

Fee Motion—October 28 & 29, 2025, and “Anticipated”: Defendant contends that Mr. Kazerouni “billed” 6.8 hours (\$4,590.00), to draft this fee motion, “file[]” same, and for “anticipated” time of reviewing the opposition, preparing a reply, and attending the hearing, and that this time should be reduced by 3.8 hours (\$2,565) as the time claimed is facially excessive and unreasonable. Defendant asserts that the fee motion comprises of a generic 8-page motion and one declaration, that is recycled from case to case, and that the alleged time contains non-compensable administrative time. Defendant also asserts that it could not reasonably have taken longer than one hour to draft the fee motion, one hour to review GM’s Opposition and draft a reply, and one hour to attend the hearing. Once again, Defendant’s assertions are unsupported by any evidence or citation to authority, and constitute merely argument.

The Court finds that 3.8 hours (rather than 6.8 hours) related to the hours claimed for the instant fee motion, (prior to the filing of the opposition and preparation of the reply) to be reasonably incurred. The Court, therefore, deducts three hours. **The Court finds that 26.40 hours were reasonably incurred in connection with the commencement and prosecution of this action up to the filing of the fee motion.**

In reply, Plaintiff provides evidence of the *additional time expended and anticipated* as it relates to the instant motion including 2.0 hours to appear and argue at the hearing on April 16, 2026, 0.1

hours to email an offer to resolve on April 17, 2026, 0.1 hours to review and respond to an email from Ryan Kay on April 20, 2026, 0.1 hours to review and respond to an email from Ryan Kay on April 21, 2026; 3.6 hours to review the opposing papers and to research and draft the reply papers on April 28, 2026, May 4, 2026, and May 6, 2026; and 2.0 anticipated hours to prepare for and attend the hearing on the motion on May 14, 2026. (Supp. Kazerouni Decl., ¶ 9.) Thus, *Plaintiff's counsel seeks an additional 7.9 hours* for time spent related to this motion and to the subject of fees. The court finds 3 hours to review the opposing papers, research and draft reply papers and prepare for hearing to be reasonable, and thereby reduces the requested amount by .6 hrs. **The Court therefore finds an additional 7.3 hours expended to be reasonably incurred, and the anticipated time for the hearing to be reasonable.**

Reasonableness of Hourly Rate

“ ‘ “The reasonable market value of the attorney's services is the measure of a reasonable hourly rate. [Citations.] This standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represent the client on a straight contingent fee basis, or are in-house counsel. [Citations.]” ’ [Citations.]” (*Pasternack v. McCullough* (2021) 65 Cal.App.5th 1050, 1055.)

“In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 41 [citations omitted].)

Based on Plaintiff's counsel's extensive experience in consumer law, including lemon law, for the past 18 years, the hourly rate of \$675 is reasonable and commensurate with the prevailing rates with attorneys specializing in the area of consumer law within the community of Orange County. (Kazerouni Decl., ¶¶ 22-32, 37-42.) Mr. Kazerouni is the co-founder of the law firm, the law firm is a midsize, multi-jurisdictional law firm, and Mr. Kazerouni has undergone extensive training in the area of consumer law, and specifically, lemon law as well as supervises 15 attorneys in his firm. (*Id.*, ¶¶ 22, 24-26, 28-29, 31.)

GM contends that Plaintiff's counsel did not satisfy his burden to show his declared rate of \$675 per hour is reasonable in Orange County for an attorney with his experience litigating Song-Beverly claims; that Mr. Kazerouni cites no Court in Orange County approving his rate and provides no other evidence supporting his rate of \$675 per hour in Orange County; that the survey of six attorneys does not support the requested rate, and that the United States Consumer Law Attorney Fee Survey Report also does not support the requested rate. GM contends that Mr. Kazerouni's rate should be reduced to \$600 per hour.

The most comparable rate presented by Plaintiff's counsel is the rate of John Hendrickson who was admitted to practice in 2008 which was \$600 per hour in January 2025. (Kazerouni Decl., ¶ 38(f).) A rate of \$675 per hour awarded over a year later is not entirely unreasonable. In addition, the United States Consumer Law Attorney Fee Survey Report is from 2017-2018. (Ex. 3 to Kazerouni Decl.) It provides that the median rate for attorneys handling vehicle cases is \$569, and that the average attorney hourly rate for a 16-20 year attorney is \$562. (Ex. 3 to Kazerouni Decl., United States Consumer Law Attorney Survey Report, at pp. 228-229.) Plaintiff's counsel provides that \$569 in October 2017 adjusted for inflation has the same worth as \$749.25 in September 2025. (Kazerouni Decl., ¶ 42.) Defendant does not address this issue, and provides no evidence to support a reduced rate of \$600 per hour.

Based on the foregoing, the Court finds that \$22,747.50 (33.7 hours x \$675) was reasonably incurred by Plaintiff's counsel in connection with the commencement and prosecution of this action, and for this fee motion. **The Court GRANTS attorney's fees in the amount of \$22,747.50**

Costs

Plaintiff seeks costs and expenses in the amount of \$730.72.

"A party's right to recover costs is governed entirely by statute. [Citation.]" (*Boonyarit v. Payless Shoesource, Inc.* (2006) 145 Cal.App.4th 1188, 1192.) "To obtain costs, a party must comply with the applicable rules of court. [Citation.]" (*Ibid.*) Prejudgment costs must be claimed and contested in accordance with the rules adopted by the Judicial Council. (Code Civ. Proc., § 1034(a).)

"A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (California Rules of Court, rule 3.1700(a)(1).)

Here, no Memorandum of Costs appears in the Court's file as having been filed separately or is attached to the Declaration of Mike Kazerouni. However, the Court finds that Plaintiff's counsel's declaration sufficiently provides that the items of cost are correct and were necessarily incurred in this case. (Kazerouni Decl., ¶¶ 2-6, 8, 12-14, 46.) Additionally, Plaintiff's counsel attaches "true and correct copies of costs, expenses and receipts on this matter," as Exhibit 2, which indicates fees for filings (\$469.99 + \$175.73) and for service (\$85).

Defendant contends that Plaintiff has not shown that all costs are properly compensable, and that the Court should disallow or tax the cost entry for One Legal Fees in the amount of \$56.22 as unreasonable or non-compensable because these costs were incurred for Plaintiff's counsel's convenience and are not necessary or reasonable. More specifically, Defendant takes issue with the "convenience fees" for paying by credit card which could have been avoided by paying by ACH, as well as One Legal's "eFiling Charge" and "Administration Charge." GM requests that the Court tax \$56.22, and award no more than \$674.50 in costs.

Initially, by way of its opposition, Defendant seeks to tax costs. The Court will consider the objection to the costs despite the failure to file a motion to tax costs. (See *Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 69 [considering objection to costs made in opposition to motion for attorneys' fees as the parties had stipulated to alternative procedure for awarding costs, and noting there was no prejudice to plaintiff, or a claim of prejudice, from the absence of a more formal motion to tax costs].)

"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774, internal citations omitted.) Whether a cost item was reasonably necessary to the litigation presents a question of fact

		for the trial court. (<i>Ibid.</i>) “[B]ecause the right to costs is governed strictly by statute a court has no discretion to award costs not statutorily authorized.” (<i>Ibid.</i>, internal citations omitted.) “An item not specifically allowable as costs under Code of Civil Procedure section 1033.5, subdivision (a), and not specifically prohibited under subdivision (b), may be allowed as costs at the discretion of the trial court if reasonably necessary to the conduct of the litigation. [Citation.]” (<i>Landwatch San Luis Obispo County v. Cambria Community Services District</i> (2018) 25 Cal.App.5th 638, 645-646.) The requirement that claimed costs be reasonable does not necessarily require that the costs be the very lowest. (<i>Id.</i> at p.646.) Fees for the electronic filing or service of documents through an electronic filing service provider if the court requires or orders electronic filing or service of documents are expressly allowed as costs. (Code Civ. Proc. § 1033.5(a)(14).) Orange County Superior Court, Local Rule 352 states, in part: “Pursuant to Code of Civil Procedure section 1010.6(d), documents filed by represented parties in all limited, unlimited, and complex civil actions must be filed electronically and allow for service electronically, unless the Court excuses parties from doing so.” The e-Filing Charge and Administration Charge are expressly allowable and are reasonable. In addition, the “Convenience Fee” for paying by a credit card is not expressly disallowed and appears reasonably necessary. The Court GRANTS costs and expenses in the amount of \$730.72. Plaintiff to give notice.
10.	30-2024-01371125 Bicknell vs. Hill Commercial Investments, Inc	1. Case Management Conference 2. Motion to Compel Answers to Form Interrogatories 3. Motion to Compel Answers to Form Interrogatories 4. Motion to Compel Answers to Special Interrogatories 5. Motion to Compel Answers to Special Interrogatories 6. Motion to Compel Production 7. Motion to Compel Production Defendant Hill Commercial Investments, Inc. (“Defendant”) moves for an order: (1) compelling Plaintiffs Darwin Bicknell and Lissa Bareno (“Plaintiffs”) to serve responses to Defendant’s first set of Requests for Production of Documents, Special Interrogatories, and Form Interrogatories; and (2) imposing monetary sanctions against Plaintiffs’ counsel, Steven Tamer. Code of Civil Procedure sections 2030.290 and 2031.300 state that if a party to whom interrogatories or a demand for inspection “fails to serve a timely response to it,” the party waives any and all objections and the propounding party may move for an order compelling responses to the interrogatory or demand. (Code Civ. Proc., §§ 2030.290(a)-(b), 2031.300(a)-(b).) These sections also state “the court shall impose a monetary sanction . . . against any party, person or attorney who unsuccessfully makes or opposes a motion . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.290(c), 2031.300(c).) Defendant electronically served the written discovery on Plaintiffs on September 22, 2025. (Declarations of Khoa D. Nguyen, ¶ 5.) Responses were due October 24, 2025. As of the October 27, 2025 filing of the motions, Plaintiffs had not served any responses. (<i>Id.</i>, ¶ 6.)